

# **Cook Islands 2024 Human Rights Report**

## **Executive Summary**

There were no significant changes in the human rights situation in the Cook Islands during the year.

There were no credible reports of significant human rights abuses.

The government took credible steps to identify and punish officials who committed human rights abuses.

## **Section 1. Life**

### **a. Extrajudicial Killings**

There were no reports the government or its agents committed arbitrary or unlawful killings.

### **b. Coercion in Population Control**

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

## **Section 2. Liberty**

### **a. Freedom of the Press**

The law provided for freedom of expression, including for members of the press and other media, and the government generally respected these rights. An independent media, an effective judiciary, and a functioning democratic political system generally combined to promote freedom of expression, including for media members.

#### **Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups**

Independent media were active and expressed a wide variety of views without restriction, although some self-censorship occurred among journalists.

Media outlets reported on political developments and high-profile court cases, but privately owned media exercised self-censorship when covering high-profile individuals.

### **b. Worker Rights**

#### **Freedom of Association and Collective Bargaining**

The constitution provided for freedom of association, and the government

interpreted this right as allowing persons to form and join independent labor unions. The law protected the right to collective bargaining and representation in labor negotiations. The law also protected union workers from discrimination by employers.

There were no reports of government encroaching upon the laws providing the right to association and collective bargaining.

### **Forced or Compulsory Labor**

The law prohibited and criminalized all forms of forced labor and was effectively enforced.

### **Acceptable Work Conditions**

#### **Wage and Hour Laws**

The minimum wage law applied to both wage and salaried employees in all sectors. The law provided for a standard 40-hour workweek and mandated increased overtime pay; however, the amount of overtime worked was not limited.

#### **Occupational Safety and Health**

The law provided general occupational health and safety (OSH) guidelines, and regulations gave specificity to the law. The law provided the right for workers to excuse themselves from work they deem hazardous.

## **Wage, Hour, and OSH Enforcement**

There were no reports on whether the government effectively enforced minimum wage, overtime, and OSH laws. The law provided penalties in the form of fines for OSH violations by employers. There was no prescribed penalty for wage or hour violations. The law prohibited contracts of employment from containing “harsh or oppressive” conditions.

The law provided minimal protections for casual employees; however, there was no law specifically pertaining to those who worked in the informal sector, such as existed for those making handicrafts and other goods. There were no wage, hour, or other labor protections provided by the law in these situations.

## **c. Disappearance and Abduction**

### **Disappearance**

There were no reports of enforced disappearances by or on behalf of government authorities.

### **Prolonged Detention without Charges**

The law prohibited the arbitrary detention or imprisonment of any person and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The government observed these requirements.

## **d. Violations in Religious Freedom**

See the Department of State's *International Religious Freedom Report* at [www.state.gov/religiousfreedomreport/](https://www.state.gov/religiousfreedomreport/).

## **e. Trafficking in Persons**

The law prohibited and criminalized migrant smuggling and human trafficking, carrying a maximum prison sentence of 20 years. It applied to all forms of human trafficking, including trafficking in children and forced labor. There were no reports during the year that traffickers exploited domestic or foreign victims in the country or that traffickers exploited victims from the Cook Islands abroad.

## **Section 3. Security of the Person**

### **a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment**

The law prohibited such practices, and there were no credible reports government officials employed them.

## **b. Protection of Children**

### **Child Labor**

The law prohibited child labor. The minimum age for work was 16, rising to 18 if the job was deemed hazardous. There was no significant presence of the worst forms of child labor.

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

### **Child Marriage**

The legal minimum age for marriage for both girls and boys was 16. A UN analysis found that marriage under age 20 was uncommon.

## **c. Protection to Refugees**

There were no reports of refugees or asylum seekers.

### **Provision of First Asylum**

There were no domestic laws regarding refugees or asylum seekers.

According to the Ministry for Foreign Affairs and Immigration, if a person was to seek asylum, the New Zealand High Commission, United Nations Human Rights Council, and International Organization for Migration would “be advised and asked for support and guidance.”

#### **d. Acts of Antisemitism and Antisemitic Incitement**

There was no known resident Jewish community, and there were no reports of antisemitic incidents or records indicating antisemitism was a problem in the country.